

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE LEWIS T. BABCOCK

Courtroom Deputy: LaDonne Bush
Court Reporter: Gwen Daniel

Date: November 19, 2010

Civil Case No. 07-cv-01355-LTB-MJW

Counsel:

UNITED STATES OF AMERICA FOR THE USE AND
BENEFIT OF SUN CONSTRUCTION COMPANY, INC.,
a Colorado corporation,

Curtis R. Henry
Jeffrey C. Culbertson

Plaintiff,

and

FIDELITY AND DEPOSIT COMPANY OF MARYLAND,
a Maryland corporation,

Patrick Q. Hustead
Connor L. Cantrell

Intervenor Plaintiff,

v.

TORIX GENERAL CONTRACTORS, LLC, a Colorado
limited liability company f/k/a Alliance General
Contractors, LLC; and
ST. ANDREWS/ALLIANCE JOINT VENTURE, a joint
venture,

Bret R. Gunnell
Matthew O. Stromquist

Defendants and Counterclaimants,

and

TRAVELERS CASUALTY AND SURETY COMPANY OF
AMERICA, a Connecticut corporation,

Bret R. Gunnell
Matthew O. Stromquist

Defendants.

COURTROOM MINUTES

JURY TRIAL - Day Fourteen

08:52 a.m. Court in Session - without jury.

Discussion regarding closing arguments and exhibits.

8:55 a.m. Court in Recess.

9:04 a.m. Court in Session - with jury.

Court reads instructions to the jury.

9:48 a.m. Closing argument by Mr. Henry.

10:18 a.m. Closing argument by Mr. Hustead.

10:25 a.m. Court in Recess.

10:36 a.m. Court in Session - with jury.

10:38 a.m. Closing argument by Mr. Gunnell.

11:19 a.m. Rebuttal argument by Mr. Henry.

11:30 a.m. Rebuttal argument by Mr. Hustead.

11:59 a.m. Court in Recess.

12:38 p.m. Court in Session - with jury.

Rebuttal argument by Mr. Gunnell.

Court security officer sworn.

Jury excused to deliberate.

1:12 p.m. Court in Recess.

2:15 p.m. Court in Session.

Jury not present.

Discussion regarding the note from the jury.

Court will give the requested photo board to the jury.

2:17 p.m. Court in Recess.

3:58 p.m. Court in Session - with jury.

Court instructs the jury regarding the weekend recess.

Court excuses the jury until 9:00 a.m. on Monday, November 22, 2010, to continue deliberations.

4:01 p.m. Court in Recess.

Trial continued.

Time: 03:26